MINUTES OF THE MEETING OF NOVEMBER 5, 2002

Minutes of the meeting of the Pine Valley Special Service District Board of Trustees held on November 5, 2002 at the fire station in Pine Valley, Utah. The meeting was called to order at 5:30 pm by Chairman Ron Snow. Other trustees present were Victor Christensen, Ryon Gardner, and Lee Carlile. Others present were Dall Winn, Fire Chief; Julie Cropper, Board Secretary; Steve Robinson representing Washington County Planning and Zoning; Fred Pendelton, Chairman of the Pine Valley Heritage Committee; and Bob Covington, Beverly Udell, Carolyn Carlile, and George Cropper.

Julie presented a tentative budget for the District for the year 2003. A legal notice will be prepared that invites public comment on the budget at the December meeting, and the proposed budget will be considered for amendment or adoption following any public comments.

A building construction which possibly belongs to Doug Hannig was discussed and it was questioned whether or not it had the proper approvals. Modular buildings were also mentioned and it was stated that they are acceptable if they meet applicable building codes and are placed on a permanent foundation.

Ryon mentioned that he had attended training with respect to Community Development Bloc Grants. We are now eligible to apply for these grants which are based on income levels and 5 or 6 projects are funded each year. Dall mentioned he had a telephone discussion about grants with John Willey. We had put in for a $10,000 matching grant. We are not committed to take it and would have 2 years to spend it, but we will need ideas for projects.

Following up on the OHV discussion ofthe Oct. meeting, the trustees discussed the usefulness of OHV signing. Most felt that signing would be a good idea. Dall reported that Under Sheriff Pete Kuhlman could not be at this meeting, but had said that under present state law, there is apparently no legal place to ride OHV s on or adjacent to roadways, since "roadway" use extends from fence to fence bordering the rights-of-way. Pete will be at the December meeting and the board decided to hear his discussion before deciding about signing. Julie mentioned that in order for board actions to be valid, the item must be on the agenda. Since the OHV issue was not formally on the agenda, actions taken in Sept. and Oct. are technically not valid. This will be an agenda item for the Dec. meeting.

Fill dirt dumping along the highway near the cemetery turn and some dumping of refuse, apparently by Brad Wallis was discussed. Steve Robinson will follow up on these questions with the Washington County Road Supervisor.

Fire Chief Dall Winn discussed the following items:

-some used light bars have been donated to us by St. George City and this will save about $1,000. They have been installed and there are some expenses in connection with this.

-we are still in the running for the Federal Grant and more announcements will be made in Nov. and Dec.

-last year the Dinner Committee contributed the cost of firefighter insurance. This year there are additional costs of joining the state fire fighters organization which would be up to $700 per year. Bob Covington mentioned that the Federal Govt apparently provides some benefits in case ofloss of life. The Board discussed insurance and agreed with the Chief, that for the limited coverage provided, this insurance would be waived.

-the Nov. training will be on the 16th at 10:00 am.

-raised a question on the expenses for bags or Jump Kit for EMT Jack Homer. Ryon moved that the District pay for this jump kit. It was questioned whether we had paid this expense for the other EMTs. The motion was not seconded and the board decided to try to find out what had been covered in the past and if in fact the District bought kits they are property of the District. Ginger had been specifically requested to take the training, but Jack has volunteered. Julie will inquire of Ginger to see who purchased her kit.

Fred Pendelton reported on the activities of the Pine Valley Heritage Committee as follows:

-they are working on a land use survey and developing information for a mail out survey to get ideas from property owners.

-discussed financing for postage and mailing options which could be about $600.

Steve Robinson said that Washington County was in the early stages of preparing ordinances to regulate sexually oriented businesses. Since this is very sensitive and subject to future litigation, county elected and appointed officials which includes the Pine Valley Service District Trustees are asked not to make public statements or give opinions on this rule making if questioned.

Julie mentioned a letter regarding a Fairview City legal decision about public liability and also a letter from the Washington County Commission thanking appointed officials for the work they do and reminding that the Board needs to continue to abide by laws and regulations when conducting the public's business.

Steve Robinson mentioned that the County Fire Warden Bill Murphy was named the State's Fire Warden of the Year recently.

There being no further business, Lee moved and Ryon seconded a motion to adjourn. The meeting was adjourned at 6:35 pm.

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Most recent revision Saturday March 29, 2003